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Section A - Solicitation/Contract Form

CNSL MHE

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Base Year- Labor Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
0002	Base Year- Materials Pricing Arrangement: Cost No Fee	1	Lot		
0003	Base Year- ODCs Pricing Arrangement: Cost No Fee	1	Lot		
0004	Base Year- Travel Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 1001	Option Period 1- Labor Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 1002	Option Period 1- Materials Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 1003	Option Period 1- ODCs Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 1004	Option Period 1- Travel Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 2001	Option Period 2- Labor	1	Lot		

	Pricing Arrangement: Cost Plus Fixed Fee				
Option Line Item 2002	Option Period 2- Materials Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 2003	Option Period 2- ODCs Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 2004	Option Period 2- Travel Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 3001	Option Period 3- Labor Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 3002	Option Period 3- Materials Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 3003	Option Period 3- ODCs Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 3004	Option Period 3- Travel Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 4001	Option Period 4- Labor Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 4002	Option Period 4- Materials Pricing Arrangement: Cost No Fee	1	Lot		

Option Line Item 4003	Option Period 4- ODCs Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 4004	Option Period 4- Travel Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 5001	FAR 52.217-8 Labor Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 5002	FAR 52.217-8 Material Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 5003	FAR 52.217-8 ODCs Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 5004	FAR 52.217-8- Travel Pricing Arrangement: Cost No Fee	1	Lot		

Section C - Description/Specifications/Statement of Work

Please see attachment 1 in Section J: Attachments.

Requirements

MHE Troubleshooting and Maintenance

Section D - Packaging and Marking

Section E - Inspection and Acceptance

Acceptance and Inspection is in accordance with the Quality Assurance Surveillance Plan.

Section F - Deliveries or Performance

Base: 30 August 2026 to 29 August 2027

Option Period 1: 30 August 2027 to 29 August 2028

Option Period 2: 30 August 2028 to 29 August 2029

Option Period 3: 30 August 2029 to 29 August 2030

Option Period 4: 30 August 2030 to 29 August 2031

FAR 52.217-8: 30 August 2031 to 29 February 2032

Overall Contract Delivery Period

Contractor
Destination

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Delivery Period From 30 Aug 2026 to 29 Aug 2027 Period of Performance From 30 Aug 2026 To 29 Aug 2027	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Hayward Gregory, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-589-6970
0002	Delivery Period From 30 Aug 2026 to 29 Aug 2027 Period of Performance From 30 Aug 2026 To 29 Aug 2027	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Hayward Gregory, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-589-6970
	Delivery Period From 30 Aug 2026 to 29 Aug	1 Lot	Place of Performance DoDAAC: N62571

0003	2027 Period of Performance From 30 Aug 2026 To 29 Aug 2027		CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Hayward Gregory, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-58-6970
0004	Delivery Period From 30 Aug 2026 to 29 Aug 2027 Period of Performance From 30 Aug 2026 To 29 Aug 2027	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Hayward Gregory, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-589-6970
Option Line Item 1001	Delivery Period From 30 Aug 2027 to 29 Aug 2028 Period of Performance From 30 Aug 2027 To 29 Aug 2028	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Hayward Gregory, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-589-6970
Option Line Item 1002	Delivery Period From 30 Aug 2027 to 29 Aug 2028	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Hayward Gregory, MHE Branch Email: daniel.p.petro.civ@us.navy.mil

			Telephone: 757-589-6970
Option Line Item 1003	Delivery Period From 30 Aug 2027 to 29 Aug 2028	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Hayward Gregory, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-589-6970
Option Line Item 1004	Delivery Period From 30 Aug 2027 to 29 Aug 2028	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Hayward Gregory, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-589-6970
Option Line Item 2001	Delivery Period From 30 Aug 2028 to 29 Aug 2029 Period of Performance From 30 Aug 2028 To 29 Aug 2029	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Hayward Gregory, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-589-6970
Option Line Item 2002	Delivery Period From 30 Aug 2028 to 29 Aug 2029 Period of Performance From 30 Aug 2028 To	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Hayward Gregory, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-589-6970

	29 Aug 2029		
Option Line Item 2003	Delivery Period From 30 Aug 2028 to 29 Aug 2029 Period of Performance From 30 Aug 2028 To 29 Aug 2029	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Hayward Gregory, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-589-6970
Option Line Item 2004	Delivery Period From 30 Aug 2028 to 29 Aug 2029 Period of Performance From 30 Aug 2028 To 29 Aug 2029	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Hayward Gregory, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-589-6970
Option Line Item 3001	Delivery Period From 30 Mar 2029 to 29 Aug 2030 Period of Performance From 30 Aug 2029 To 29 Aug 2030	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Hayward Gregory, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-589-6970
	Delivery Period From 30 Mar 2029 to 29 Aug 2030	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM

Option Line Item 3002	Period of Performance From 30 Aug 2029 To 29 Aug 2030		BLVD NORFOLK, VA 23511-3215 UNITED STATES Hayward Gregory, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-589-6970
Option Line Item 3003	Delivery Period From 30 Mar 2029 to 29 Aug 2030 Period of Performance From 30 Aug 2029 To 29 Aug 2030	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Hayward Gregory, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-589-6970
Option Line Item 3004	Delivery Period From 30 Mar 2029 to 29 Aug 2030 Period of Performance From 30 Aug 2029 To 29 Aug 2030	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Hayward Gregory, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-589-6970
Option Line Item 4001	Delivery Period From 30 Aug 2030 to 29 Aug 2031 Period of Performance	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Hayward Gregory, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-589-6970

	From 30 Aug 2030 To 29 Aug 2031		
Option Line Item 4002	Delivery Period From 30 Aug 2030 to 29 Aug 2031 Period of Performance From 30 Aug 2030 To 29 Aug 2031	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Hayward Gregory, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-589-6970
Option Line Item 4003	Delivery Period From 30 Aug 2030 to 29 Aug 2031 Period of Performance From 30 Aug 2030 To 29 Aug 2031	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Hayward Gregory, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-589-6970
Option Line Item 4004	Delivery Period From 30 Aug 2030 to 29 Aug 2031 Period of Performance From 30 Aug 2030 To 29 Aug 2031	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Hayward Gregory, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-589-6970
	Delivery Period From 30 Aug 2031 to 29 Feb	1 Lot	Place of Performance DoDAAC: N62571

Option Line Item 5001	2032 Period of Performance From 30 Aug 2031 To 29 Feb 2032		CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Daniel Petro, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-589-6970
Option Line Item 5002	Delivery Period From 30 Aug 2031 to 29 Feb 2032 Period of Performance From 30 Aug 2031 To 29 Feb 2032	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Daniel Petro, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-589-6970
Option Line Item 5003	Delivery Period From 30 Aug 2031 to 29 Feb 2032 Period of Performance From 30 Aug 2031 To 29 Feb 2032	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Daniel Petro, MHE Branch Email: daniel.p.petro.civ@us.navy.mil Telephone: 757-589-6970
Option Line Item 5004	Delivery Period From 30 Aug 2031 to 29 Feb 2032	1 Lot	Place of Performance DoDAAC: N62571 CountryCode: USA MHE DIVISION FLEET ISSUE CTRL PT NAVSUP FLT LOG CTR C431 BLDG W127, 1910 DILLINGHAM BLVD NORFOLK, VA 23511-3215 UNITED STATES Daniel Petro, MHE Branch Email: daniel.p.petro.civ@us.navy.mil

	Period of Performance From 30 Aug 2031 To 29 Feb 2032		Telephone: 757-589-6970
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FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.247-34	F.o.b. Destination.	Jan 1991		

Section G - Contract Administration Data

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

To be completed at time of award.

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and
- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

- (i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.
- (ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	==
Issue By DoDAAC	==
Admin DoDAAC	==
Inspect By DoDAAC	==
Ship To Code	==
Ship From Code	==
Mark For Code	==
Service Approver (DoDAAC)	==
Service Acceptor (DoDAAC)	==
Accept at Other DoDAAC	==

LPO DoDAAC	=====
DCAA Auditor DoDAAC	=====
Other DoDAAC(s)	=====

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

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(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section H - Special Contract Requirements

CONTRACT ADMINISTRATION APPOINTMENTS AND DUTIES

In order to expedite administration of this contract/order, the following delineation of duties is provided including the names, addresses and phone numbers for each individual or office as specified. The individual/position

designated as having responsibility should be contacted for any questions, clarifications or information regarding the functions assigned.

1. PROCURING CONTRACTING OFFICER (PCO) is responsible for:

- a. All pre-award information, questions, or data;
- b. Freedom of Information inquiries;
- c. Change/question/information regarding the scope, terms or conditions of the basic contract document; and/or
- d. Arranging the post award conference (See FAR 42.503).

Name: Chris Whiteside

Address: NAVSUP FLC Norfolk

1968 Gilbert Street Suite 600

Norfolk, VA 23511

2. CONTRACT ADMINISTRATION OFFICE (CAO) is responsible for matters specified in FAR 42.302 and DFARS 242.302 except in those areas otherwise designated herein.

Name: Daniel Petro

Address: NAVSUP FLC Norfolk

1968 Gilbert Street, Suite 600

Norfolk, VA 23511-3392

3. DEFENSE CONTRACT AUDIT AGENCY (DCAA) is responsible for audit verification/provisional approval of invoices and final audit of the contract prior to final payment to the contractor.

Name: N/A

4. PAYING OFFICE is responsible for payment of proper invoices after acceptance is documented.

Name: TO BE COMPLETED AT AWARD

Address: -----

Phone: -----

5. CONTRACTING OFFICERS REPRESENTATIVE (COR) is responsible for:

- a. Liaison with personnel at the Government installation and the contractor personnel on site;
- b. Technical advice/recommendations/clarification on the statement of work;
- c. The statement of work for delivery/task orders placed under this contract.
- d. An independent government estimate of the effort described in the definitized statement of work;

- e. Quality assurance of services performed and acceptance of the services or deliverables;
- f. Government furnished property;
- g. Security requirements on Government installation;
- h. Providing the PCO or his designated Ordering Officer with appropriate funds for issuance of the Delivery/Task order; and/or
- i. Certification of invoice for payment

NOTE: When, in the opinion of the Contractor, the COR requests effort outside the existing scope of the contract (or delivery/task order), the Contractor shall promptly notify the Contracting Officer (or Ordering Officer) in writing. No action shall be taken by the contractor under such direction until the Contracting Officer has issued a modification to the contract or, in the case of a delivery/task order, until the Ordering Officer has issued a modification of the delivery/task order; or until the issue has otherwise been resolved. THE COR IS NOT AN

ADMINISTRATIVE CONTRACTING OFFICER AND DOES NOT HAVE THE AUTHORITY TO DIRECT THE ACCOMPLISHMENT OF EFFORT WHICH IS BEYOND THE SCOPE OF THE STATEMENT OF WORK IN THE CONTRACT OR DELIVERY/TASK ORDER.

Name: TBD

Address:

Phone:

6. TECHNICAL ASSISTANT, if assigned by the requiring activity, is responsible for providing technical assistance and support to the COR in contract administration by:

- a. Identifying contractor deficiencies to the COR;
- b. Reviewing contract/delivery/task order deliverables and recommending acceptance/rejection of deliverables;
- c. Identifying contractor noncompliance of reporting requirements;
- d. Evaluating contractor proposals for specific contracts/orders and identifying areas of concern affecting negotiations;
- e. Reviewing contractor reports providing recommendations for acceptance/rejection;
- f. Reviewing invoices for appropriateness of costs and providing recommendations to facilitate certification of the invoice;
- g. Providing COR with timely input regarding the SOW, technical direction to the contractor and recommending corrective actions; and
- h. Providing written reports to the COR as required concerning trips, meetings or conversations with the contractor.

Name: N/A

7. ORDERING OFFICER is responsible for:

- a. Requesting, obtaining, and evaluating proposals for orders to be issued;
- b. Determining the estimated cost of the order is fair and reasonable for the effort proposed;
- c. Obligorating the funds by issuance of the delivery/task order;
- d. Authorization for use of overtime;
- e. Authorization to begin performance; and/or
- f. Monitoring of total cost of delivery/task orders issued.

Name: TBD

Address:

Phone:

Email:

(End of Text)

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-3	Gratuities.	Apr 1984		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		
52.222-41	Service Contract Labor Standards.	Aug 2018		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.228-5	Insurance-Work on a Government Installation.	Jan 1997		
52.232-18	Availability of Funds.	Apr 1984		
52.232-22	Limitation of Funds. (Deviation)	Feb 2026		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	Apr 1984		
52.242-13	Bankruptcy.	Jul 1995		
52.243-2	Changes-Cost-Reimbursement. (Deviation)	Feb 2026		
52.245-1	Government Property.	Sep 2021		
52.245-9	Use and Charges.	Apr 2012		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support.	Jan 2023		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7022	Expediting Contract Closeout.	May 2021		
252.204-7023	Reporting Requirements for Contracted Services.	Jul 2021		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.219-7003	Small Business Subcontracting Plan (DoD Contracts).	Dec 2019		
252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7015	Restriction on Acquisition of Hand or Measuring Tools.	Jun 2005		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	May 2024		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.225-7967	Prohibition Regarding Russian Fossil Fuel Business Operations (Deviation 2024-O0006, Revision 1)	Feb 2024	Deviation 2024-O0006	Feb 2024
252.225-7972	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.245-7003	Contractor Property Management System Administration	Jan 2025		
252.245-7005	Management and Reporting of Government Property.	Jan 2024		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.217-8 Option to Extend Services.

(Nov 1999)

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 1 day.

(End of clause)

52.217-9 Option to Extend the Term of the Contract.

(Mar 2000)

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 1 day; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 1 day before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 66 months.

(End of clause)

52.219-14 Limitations on Subcontracting (DEVIATION 2021-O0008)

(Oct 2022) Deviation 2021-O0008 (Feb 2023)

LIMITATIONS ON SUBCONTRACTING (FEB 2023) (DEVIATION 2021-O0008)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) *Definition. Similarly situated entity*, as used in this clause, means a first-tier subcontractor, including an independent contractor, that--

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) *Applicability.* This clause applies only to--

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;

(4) Orders expected to exceed the simplified acquisition threshold and that are--

(i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);

(5) Orders, regardless of dollar value, that are--

(i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) *Independent contractors.* An independent contractor shall be considered a subcontractor.

(e) *Limitations on subcontracting.* By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for--

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding certain other direct costs and certain work performed outside the United States (see paragraph (e)(1)(i)), to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract. The following services may be excluded from the 50 percent limitation:

(i) Other direct costs, to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service. Examples include airline travel, work performed by a transportation or disposal entity under a contract assigned the environmental remediation NAICS code 562910), cloud computing services, or mass media purchases.

(ii) Work performed outside the United States on awards made pursuant to the Foreign Assistance Act of 1961, or work performed outside the United States required to be performed by a local contractor.

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause--

[Contracting Officer check as appropriate.]

X By the end of the base term of the contract and then by the end of each subsequent option period; or

[] By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protege and its mentor approved by the Small Business Administration, the small business protege shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protege in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.222-2 Payment for Overtime Premiums. (Deviation)

(Feb 2026)

PAYMENT FOR OVERTIME PREMIUMS (FEB 2026) (DEVIATION)

(a) The use of overtime is authorized under this contract if the overtime premium cost does not exceed * _____ or the overtime premium is paid for work-

(1) Necessary to cope with emergencies such as those resulting from accidents, natural disasters, breakdowns of production equipment, or occasional production bottlenecks of a sporadic nature;

(2) By indirect-labor employees such as those performing duties in connection with administration, protection, transportation, maintenance, standby plant protection, operation of utilities, or accounting;

(3) To perform tests, industrial processes, laboratory procedures, loading or unloading of transportation conveyances, and operations in flight or afloat that are continuous in nature and cannot reasonably be interrupted or completed otherwise; or

(4) That will result in lower overall costs to the Government.

(b) Any request for estimated overtime premiums that exceeds the amount specified above must include all estimated overtime for contract completion and must-

- (1) Identify the work unit; *e.g.*, department or section in which the requested overtime will be used, together with present workload, staffing, and other data of the affected unit sufficient to permit the Contracting Officer to evaluate the necessity for the overtime;
 - (2) Demonstrate the effect that denial of the request will have on the contract delivery or performance schedule;
 - (3) Identify the extent to which approval of overtime would affect the performance or payments in connection with other Government contracts, together with identification of each affected contract; and
 - (4) Provide reasons why the required work cannot be performed by using multishift operations or by employing additional personnel.
- * Insert either "zero" or the dollar amount agreed to during negotiations.

(End of clause)

52.222-42 Statement of Equivalent Rates for Federal Hires.

(May 2014)

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5 332.

This Statement is for Information Only: It is not a Wage Determination

Labor Category	GS Equivalent
Program Manager	GS-12 Step 5
Production Manager	GS-9 Step 1
Quality Assurance Inspector	GS-9 Step 1
Material Expediter	GS-6 Step 2
Administrative Assistant	GS-9 Step 3
Shop Supervisor	GS-11 Step 6
MHE/ SMHE Senior Engineer Technician	GS-12 Step 2
MHE/ SMHE Junior Engineer Technician	GS-6 Step 1

MHE/ SMHE Mobile Service Road Engineer Technician Senior	GS-12 Step 2
MHE/ SMHE Shop Warehouse Electric Battery	GS-6 Step 3

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far/part-52> and <https://www.acquisition.gov/dfars/part-252-solicitation-provisions-and-contract-clause>

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DFARS (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.204-7021 Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements.

(Nov 2025)

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

- 170.18); and
- (A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and
 - (B) A corresponding affirmation of continuous compliance by an affirming official;
- (2) With regard to Final CMMC Status-
- (i) Not older than 1 year for Final Level 1 (Self), with-
 - (A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and
 - (B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;
 - (ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-
 - (A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and
 - (B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and
 - (iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-
 - (A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and
 - (B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and
- (3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

- (1) Final Level 1 (Self).
- (2) Conditional Level 2 (Self).
- (3) Final Level 2 (Self).
- (4) Conditional Level 2 (C3PAO).
- (5) Final Level 2 (C3PAO).
- (6) Conditional Level 3 (DIBCAC).
- (7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework*. The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication*. The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements*. The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: _____
Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC) for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) *Reporting.* The Contractor shall-

(1) Submit to the Contracting Officer-

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) *Subcontracts.* The Contractor shall-

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

252.225-7043 Antiterrorism/Force Protection for Defense Contractors Outside the United States. (Jun 2015)

ANTITERRORISM/FORCE PROTECTION POLICY FOR DEFENSE CONTRACTORS OUTSIDE THE UNITED STATES (JUN 2015)

(a) *Definition.* " United States ," as used in this clause, means, the 50 States, the District of Columbia , and outlying areas.

(b) Except as provided in paragraph (c) of this clause, the Contractor and its subcontractors, if performing or traveling outside the United States under this contract, shall-

(1) Affiliate with the Overseas Security Advisory Council, if the Contractor or subcontractor is a U.S. entity;

(2) Ensure that Contractor and subcontractor personnel who are U.S. nationals and are in-country on a non-transitory basis, register with the U.S. Embassy, and that Contractor and subcontractor personnel who are third country nationals comply with any security related requirements of the Embassy of their nationality;

(3) Provide, to Contractor and subcontractor personnel, antiterrorism/force protection awareness information commensurate with that which the Department of Defense (DoD) provides to its military and civilian personnel and their families, to the extent such information can be made available prior to travel outside the United States; and

(4) Obtain and comply with the most current antiterrorism/force protection guidance for Contractor and subcontractor personnel.

(c) The requirements of this clause do not apply to any subcontractor that is-

(1) A foreign government;

(2) A representative of a foreign government; or

(3) A foreign corporation wholly owned by a foreign government.

(d) Information and guidance pertaining to DoD antiterrorism/force protection can be obtained from Naval Criminal Investigative Service (NCIS), Code 21; telephone, DSN 288-9077 or commercial (202) 433-9077.

(End of clause)

Section J - List of Attachments

Attachment 1- Performance Work Statement
Attachment 2- Level of Effort Spreadsheet
Attachment 3- QASP
Attachment 4- Contract Admin Plan
Attachment 5- Past Performance Information Form
Attachment 6- Past Performance Report Form
Attachment 7- Wage Determination 2015-4341
Attachment 8- CDR Form
Attachment 9- List of Government Furnished Property

Section K - Representations, Certification, & Other Statements

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		
252.225-7973	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems—Representation. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024

FAR Clauses Incorporated by Full Text

52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021)

REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services-Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.*

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that-

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that-

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-26 Covered Telecommunications Equipment or Services-Representation.

(Oct 2020)

COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (OCT 2020)

(a) *Definitions.* As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c)

(1) *Representation*. The Offeror represents that it ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.204-29 Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures. (Dec 2023)

FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS-REPRESENTATION AND DISCLOSURES (DEC 2023)

(a) *Definitions*. As used in this provision, *Covered article*, *FASCSA order*, *Intelligence community*, *National security system*, *Reasonable inquiry*, *Sensitive compartmented information*, *Sensitive compartmented information system*, and *Source* have the meaning provided in the clause 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(b) *Prohibition*. Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(c) *Procedures*.

(1) The Offeror shall search for the phrase "FASCSA order" in the System for Award Management (SAM)(<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) *Representation*. By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) *Disclosures*. The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

(1) Name of the product or service provided to the Government;

(2) Name of the covered article or source subject to a FASCSA order;

(3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;

(4) Brand;

(5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(6) Item description;

(7) Reason why the applicable covered article or the product or service is being provided or used;

(f) *Executive agency review of disclosures*. The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

(End of provision)

52.209-7 Information Regarding Responsibility Matters. (Oct 2018)

INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) *Definitions*. As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

- (A) The payment of a monetary fine or penalty of \$5,000 or more; or
- (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. (Feb 2016)

REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2016)

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7016 Covered Defense Telecommunications Equipment or Services-Representation. (Dec 2019)

COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)

(a) *Definitions.* As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

Section L: Instructions, Conditions, and Notices to Offerors

The Government intends to award a single award Cost-Plus-Fixed-Fee (CPFF) Contract as a result of this solicitation in accordance with FAR Part 15. Award will be made to that offeror whose proposal is most advantageous to the Government under the selection criteria set forth in this solicitation.

The Government intends to evaluate proposals and make an award based on initial proposals. Therefore, the vendor's initial proposal should contain the vendor's best terms from a Technical, Past Performance, Small Business Participation, and Cost/Price standpoint. The Government reserves the right to award a contract to other than the lowest priced vendor; award a contract without discussions; or award a contract after discussions, whichever is in the best interest of the Government.

The Government intends to award a single CPFF contract to the responsible vendor whose proposal represents the best value after evaluation in accordance with the factors in the solicitation. The vendor's proposal shall be in the form prescribed by, and shall contain a response to each of the areas identified in instructions (Section L) below.

This requirement will be competed utilizing a best value with trade-offs source selection process. Contractors will be required to submit a non-cost/price proposal that will be evaluated in accordance with solicitation procedures as set forth in the source selection process. The non-cost/price proposal will consist of the following factors: Factor I-Technical: Subfactor I-Performance Approach and Subfactor II- Staffing & Management Approach, Factor II-Past Performance, and Factor III-Small Business Participation Approach. The Cost Proposal consists of Factor IV - Cost/Price. Within the non-cost/price proposal, Technical is more important than Past Performance and Past Performance is more important than the Small Business Participation Approach. Within the Technical Factor, the Performance Approach and Staffing & Management Approach are of equal importance. The Non-Cost/Price Proposal is significantly more important than the Cost Proposal.

QUESTIONS: Offerors may submit questions via email to the Contract Specialist Daniel Petro at daniel.p.petro.civ@us.navy.mil and the Contracting Officer Christopher Whiteside at christopher.d.whiteside2.civ@us.navy.mil . It is requested that all questions be received by **08 April 2026 10:00AM** Eastern Time, as time may not permit responses to questions received after that date to be prepared and issued prior to the receipt of proposals.

FOR SUBMISSIONS OF OFFERS:

(1) Proposals shall be submitted electronically via email to the Contract Specialist Daniel Petro at daniel.p.petro.civ@us.navy.mil and the Contracting Officer Christopher Whiteside at christopher.d.whiteside2.civ@us.navy.mil no later than the due date of the solicitation outlined in the SAM.gov posting. Offerors shall comply with the detailed instructions for the format and content of the proposals contained herein; proposals that do not comply may be considered unacceptable and may render the proposal ineligible for award. All electronic files and versions of offerors' proposals shall

be compatible with the current release of Microsoft Office Suite version 2016 (Excel). The offeror shall be responsible for ensuring that their electronic proposals are virus free.

(2) Offerors shall comply with all instructions for submitting proposals and attachments.

(3) Volumes I, II, & III - Non-Cost/Price Proposal

These volumes shall address the Technical Factor, Past Performance factor, and Small Business Participation Approach factor and include all information required for proposal evaluation. This volume of the proposal shall exclude any price information. Each page of each copy shall be affixed with the following legend:

Source Selection Information

See FAR 2.101 and FAR 3.104

(4) Volume IV -Cost Proposal

This volume shall include the completed solicitation documents and a complete and detailed price breakdown with all supporting information. Each page of each copy shall be affixed with the following legend:

Source Selection Information

See FAR 2.101 and FAR 3.104

(5) Volume V - Small Business Subcontracting Plan

This volume shall address the Small Business Subcontracting with all supporting information. Each page of each copy shall be affixed with the following legend:

Source Selection Information

See FAR 2.101 and FAR 3.104

REQUIREMENTS FOR PROPOSAL CONTENT:

The offer should contain the following items in addition to other information required by this solicitation.

The cover page should indicate the following:

- Title of the proposal
- Volume Number (I, II, III, IV, or V)
- Proposal Category (Factor)
- Request for Proposal Number
- Name and Address of Offeror, CAGE Code, UEI number, and applicable Tax I.D. Number (TIN)
- Identification if original or a copy of the proposal
- Point of Contact name, telephone number and email address
- Proposal valid for until performance start date

Proposals shall be prepared in five (5) separate and distinct volumes:

- **Volume I - Factor I: Technical Factor**
 - o **Subfactor I - Performance Approach**
 - o **Subfactor II - Staffing & Management Approach**

- **Volume II - Factor II: Past Performance**

- **Volume III - Factor III: Small Business Participation Approach**

- **Volume IV - Factor IV: Cost/ Price**

- **Volume V - Small Business Subcontracting Plan**

Table of Contents: The table of contents should provide sufficient detail as to allow the important elements to be easily located.

1. Requirements for Style: Each offeror shall submit a proposal that clearly and concisely describes and defines the contractor's response to the requirements contained in the solicitation documents and attachments. Unnecessary elaboration or other presentations beyond that sufficient to present a complete and effective proposal are not desired and may be construed as an indication of the offeror's lack of understanding of cost consciousness. The proposal shall contain all the pertinent information in sufficient detail in the one area of the proposal where it contributes most critically to the discussion of the same information. When necessary, the offeror shall refer to the initial discussion and identify its location within the submitted proposal.

2. Proposal Page Limitations

Volumes I, II, & III Non-Cost/Price Proposal and Volume V Small Business Subcontracting Plan - the following page limitations are established:

Volume Title	Proposal Quantities	Page Limit*	Required Format
Volume I: Factor I - Technical Approach, Subfactor I Performance Approach and Subfactor II Staffing and Management Approach	1 Original	35 pages	Microsoft Word
Volume II: Factor II - Past Performance	1 Original	12 pages	Microsoft Word
Volume III: Factor III - Small Business Participation Plan	1 Original	No limit	Microsoft Word
Volume V, Small Business Subcontracting Plan	1 Original	No limit	Microsoft Word

Volume IV, Cost/Price Proposal - is not page limited.

Volume Title	Proposal Quantities	Page Limit*	Required Format
Volume IV - Factor IV: Cost/ Price Proposal	1 Original	No Limit	Microsoft Excel

Proposals shall be submitted electronically no later than the solicitation closing date on SAM.gov. Offerors shall comply with the detailed instructions for the format and content of the proposals contained herein; proposals that do not comply may be considered unacceptable and may render the proposal ineligible for award.

All submission and attachments shall be in Microsoft Office Word or Excel. Submissions are page limited to the maximum number of pages as defined above. These page limitations are inclusive of the executive summary and any charts, diagrams, and/or other graphics. Graphics (including tables) in the proposal must use a font with 8-point size type or greater. Each "page" is defined as one sheet, 8 1/2" x 11", with at least one inch margins on all sides, using a font with a point size of 12 or greater (e.g., "Times New Roman" style with 12-point font), and the orientation shall be portrait. Lines shall, at a minimum, be selected as single-spaced in Microsoft Word with Microsoft Word Normal character spacing. Pages shall be consecutively numbered. Multiple pages, double pages, two-sided pages, or foldouts will count as an equivalent number of 8 1/2" x 11" pages. The offeror is permitted to submit no more than one page for each of the following, which will not be included in the page count: a cover sheet, list of tables, list of figures, list of acronyms, compliance matrix, table of contents, tabs, and dividers.

Pages submitted in excess of the page limitations described herein will not be evaluated.

The Cost/Price Proposal is not page limited; however, the cost proposal is to be strictly limited to price information and completed solicitation documents as described in the General Section at the beginning of this text.

* Page limits represent the maximum pages the Government will evaluate and are not construed as de facto standards for the amount of material expected in the proposal.

Non-Cost/Price Proposal: The Non-Cost/Price Proposal factors are listed below.

Volume I Factor I-Technical

Subfactor I: Performance Approach

The offerors shall demonstrate an understanding of the requirement and ability to perform the required tasks, and shall demonstrate to the government that the offeror is capable of fully providing the services identified in PWS Sections 4 .11, 4.12, 5, 5.2, and 5.3.

Subfactor II: Staffing & Management Approach

The offeror shall provide a staffing approach that demonstrates the offeror's ability to recruit, hire, and retain the appropriate mix and quantity of personnel resources with the skillset levels necessary within Section 6 of the PWS. The offeror shall provide a detailed staffing and management approach that will successfully accomplish the

requirements of the solicitation by describing the management controls, techniques and procedures that will be used

to ensure the objectives of the PWS are performed in a timely, responsive, professional and efficient manner. The offeror shall provide a management approach that demonstrates the offeror's ability to flexibly staff with commitment to perform work assignments on short notice based on changing task priorities, and effective allocation of staff and resources to accomplish goals.

The vendor's staffing approach will also be evaluated on how well it clearly and effectively:

- o Details how this effort will be managed within the offeror's corporate organizational structure. This includes the roles, responsibilities, authorities and professional qualification(s)/ background(s)/ experience(s) of those individuals to be dedicated to this contract effort.
- o Demonstrates utilization of the offerors personnel resources and demonstrated understanding of the skill sets and LOE/Labor mix required to successfully accomplish the tasks/requirements specified in Section 6 of the PWS.
- o Identifies a comprehensive and feasible approach that places a fully qualified workforce in place on the first day of performance.

- o Identifies a comprehensive and feasible methodology for identifying, recruiting, preparing, training, and retention of qualified personnel for performance at each site and the offeror's plan to minimize staff turnover.
- o Identifies a comprehensive and feasible mitigation for the retention of personnel in the event of non-consecutive task orders so as to not delay continuation of services.
- o Mitigates risks associated with its staffing approach and implementation of its approach.

Volume II Factor II - Past Performance

The offeror shall demonstrate relevant past performance or affirmatively state that it possesses no relevant past performance. Relevant past performance is performance under contracts or efforts within the past (5) five years prior to the solicitation closing date that is the same as or similar to, the scope and magnitude of the work described by this solicitation.

For purposes of this solicitation, a contract is defined as a single contract or a single task order placed under an ID/IQ contract, a Blanket Purchase Agreement (BPA), or a Federal Supply Schedule. Vendors shall not submit the IDIQ contract, FSS contract, or BPA itself as a reference. Vendors may submit a combination of no more than three (3) delivery orders (DOs), task orders (TOs), technical direction letters (TDLs), and/or technical area tasks (TATs) placed under an IDIQ or BPA as one of the three examples of past performance. Such a combination must also meet the requirements stated above: each individual example in the combination must have been performed within five (5) years of the solicitation issuance date and demonstrate at least one year of completed performance prior to the closing date of this solicitation. If a combination of DOs, TOs, TDLs and or TATs are used as a past performance example, the vendor shall state the specific experience claimed, period of performance, and dollar value of each. A Past Performance example that does not provide the level of detail required may not be evaluated. No more than one combination of DOs, TOs, TDLs and or TATs is permitted in the past performance submittal.

Subcontractor performance (either the offeror's own subcontractor experience or proposed subcontractors experience) of major or critical aspects of this requirement will be considered as highly as prime contractor past performance information for the offeror.

a. If proposed subcontractor past performance is provided as part of the three (3) of its most relevant contracts or efforts, the percentage and type of work to be done by the subcontractor on the solicitation requirement must be stated. The offeror's proposal shall detail clearly the aspects of the work in the solicitation that the subcontractor is proposed to perform. A Past Performance example which does not detail clearly the aspects of the work in the solicitation that the subcontractor is proposed to perform will not be evaluated.

b. If the prime offeror or intended subcontractor/partner submits a past performance example in which it served as a subcontractor, the prime/sub/partner shall detail clearly the work that it performed and the magnitude (dollar value) of that subcontracted work only. A Past Performance example that does not differentiate between the overall contract effort and the subcontractor effort will not be evaluated.

The offeror should complete a Past Performance Information Form for each reference submitted. For additional information regarding a particular reference beyond that which will fit on the form, the offeror may continue onto another sheet of paper. The forms and any such continuation sheet(s) for submitted references will count toward the Volume II page limit described at the end of this section.

With respect to joint ventures, the procuring activity will consider work done individually by each member of the joint venture as well as any work done by the joint venture itself previously. Joint venture references must meet the temporal requirements described in Section L above (within five years and must reflect at least one year of completed performance prior to the closing date of this solicitation). Additionally, if a joint venture member

submits a past performance reference, the joint venture member shall detail clearly the work that it performed in that effort and the magnitude (dollar value) of that work. A reference that does not differentiate between the overall contract effort and the joint venture member's effort for that reference will not be evaluated. The past performance of a joint venture member who will be performing major or critical aspects of the solicitation will be considered as highly as the joint venture's past performance.

In addition to the information requested above, offerors shall contact their past performance references and request

that each reference complete the Past Performance Report Form attached to the solicitation and e-mail the completed

survey form directly to Daniel Petro at daniel.p.petro.civ@us.navy.mil and Christopher Whiteside at

christopher.d.whiteside2.civ@us.navy.mil by the closing date of the solicitation. The Government reserves the right to consider past performance report forms received after the due date of the solicitation and to contact references for verification or additional information.

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Volume III Factor III: Small Business Participation Plan

All offerors (large and small businesses) SHALL provide a Small Business Participation Plan. Small Business Participation Plans shall address the following:

- The extent to which small business concerns are specifically identified;
- The extent of commitment to use small business concerns (for example, enforceable commitments will be weighted more heavily than non-enforceable ones);
- The complexity and variety of the work small firms are to perform;
- Past performance of the offeror in complying with requirements of the clauses at FAR 52.219-8, Utilization of Small Business Concerns, and FAR 52.219-9, Small Business Subcontracting Plan;
 - o When subcontracting possibilities existed on the contracts submitted by the offeror in the Past Performance volume, address whether or not the offeror awarded subcontracts to small business concerns, veteran-owned small business concerns, service-disabled veteran-owned small business concerns, HUBZone small business concerns, small disadvantaged business concerns, and women-owned small business concerns to the fullest extent consistent with efficient contract performance.
 - o If utilizing small businesses in current or prior contracts was not practicable, the offeror shall explain why

- o Provide any information substantiating the offeror's track record of utilizing small business on past contracts in detail. Include, at a minimum, two most recent Summary Subcontract Reports (SSR) from eSRS.

- The extent of participation of small business concerns in terms of the value of the total acquisition.

Volume IV Factor IV- Cost/ Price Proposal

The Cost/Price proposal shall include the completed solicitation documents. The cost/price proposal shall include all elements of cost and such other cost information considered appropriate to support the offeror's proposal. The cost information shall be completed in accordance with the following:

- (a) A completed CNSL MHE Cost Spreadsheet, Attachment 1.

- (b) A completed and signed page 1 of the solicitation and a completed and signed page 1 of any amendments

- (c) All supplemental information to support proposed cost, to include but not limited to provisional billing or forward pricing rates, payroll data, and estimated level of effort by labor category.

- (d) System for Award Management (SAM) Representations, Certifications and Other Statements of offerors completed by the offeror.

- (e) Any and all subcontracts shall be identified and priced in the proposal. Contractors shall submit required cost or price analyses with the proposal in accordance with FAR 15.404-3, including a certificate of current cost or pricing data, if applicable.

- (f) The cost proposal shall include all elements of cost and such other cost information as considered appropriate to support the offeror's proposal.

- (g) Downward cost realism adjustments will generally not be made. Labor will be evaluated on the basis of 100% straight time.

a. Basic Cost Information - Offeror's proposal must contain sufficient information to allow for the Government to perform an analysis of the proposed cost and to determine cost reasonableness and cost realism. Cost shall be broken down by cost element for each Contract Line Item Number (CLIN). These elements shall at a minimum include, as applicable: direct labor, other direct cost, travel, subcontracts, indirect cost and rates, and fee. Offeror shall provide for each element of cost, the basis of estimate, including explanation and rationale sufficient to support a determination of reasonableness.

Any and all subcontracts shall be identified and priced in the proposal. Subcontracts (regardless of dollar value) shall be adequately documented. The same level of detailed cost information required in this solicitation of the prime contractor, to include certified cost and pricing data if required, shall be provided by each subcontractor proposed for this effort. Subcontractor cost/price breakdowns shall be submitted as described above. Subcontractors can submit information directly to the Government by the due date of this solicitation.

b. The itemized cost proposal must include the following:

1. Direct Labor: Show the current and projected salary amounts in man-hours, man-months, or annual salary to be charged by any technical personnel either by person or position. State the number of manhours used to calculate a man-month or man-year. For each person or position, provide the following information:

a. The basis for the direct labor hours or percentage of effort (e.g., historical hours or estimates).

b. The basis for the direct labor rates or salaries. Labor costs should be based upon current labor rates or salaries. Rates may be adjusted upward for forecast salary or wage cost-of-living increases that will occur during the agreement period. The cost proposal should separately identify the ratio applied to base salary/wage for cost-of living adjustments and merit increases. Each must be fully explained.

c. The portion of time (hours) by labor category to be devoted to the proposed effort.

d. The total annual salary charged to the effort.

e. Any details that may affect the salary during the effort, such as plans for leave.

2. Fringe Benefits and Indirect Costs (Overhead, General and Administrative (G&A), Facilities and Other): The most recent rates, dates of negotiation, the base or bases, and periods to which the rates apply must be disclosed and a statement included to identify whether the proposed rates are provisional or fixed. If a Forward Pricing Rate Agreement has been negotiated by a Government agency, state when and by which agency. A copy of the negotiation memorandum and the approved or provisionally approved rates shall be provided. If negotiated forecast rates do not exist, offerors must provide sufficient detail to enable the Government to determine that the costs included in the forecast rates are allocable, allowable, and reasonable according to applicable FAR/DFARS provisions. An offeror's disclosure should be sufficient to permit a complete understanding of the content of the rate(s) and how it was established. As a minimum, the submission should identify:

a. All individual cost elements included in the forecast rate(s);

b. Bases used to prorate indirect expenses to cost pools, if any;

c. How the rate(s) was calculated;

d. Distribution basis of the developed rate(s);

e. Bases on which the overhead rate is calculated, such as "salaries and wages" or "total costs;" and

f. The period of the offeror's fiscal year.

3. Subcontracts: A precise description of proposed services or materials that are subcontracted must be provided. For all subcontracts proposed, provide the following specific information:

a. A clear description of the work to be performed.

b. If known, the identification of the proposed subcontractor and an explanation of why and how the subcontractor was selected or will be selected.

c. The identification of the type of award to be used (cost reimbursement, fixed price, etc.).

d. Whether or not the award will be competitive and, if noncompetitive, rationale to justify the absence of competition.

e. A detailed cost summary (i.e., cost elements) to include the cost pool and allocation base for each element and a certificate of current cost and pricing data (if required).

f. The results of the offeror's cost or price analysis of the subcontractor's proposed price.

4. ODCs: Offeror shall insert the Government estimated ODC plug number in their proposed price in addition to any applicable General and Administrative (G&A) and/or Overhead (OH) rate applicable in accordance with FAR Part 31 and their accounting system. Only G&A and/or OH indirect costs are allowed to be applied to ODC, no profit or fee is allowed. The offeror shall include an explanation in their price proposal as to how the proposed rates will be applied to ODC in accordance with FAR Part 31 and their accounting system. Additionally, offerors shall state in their price proposal if the proposed indirect rates are approved by or have been audited by the Defense Contract Management Agency (DCMA) or the Defense Contract Audit Agency (DCAA). NOTE: If no G&A and/or OH are proposed, it will be determined that the offeror does not intend on applying any applicable indirect cost to provided ODC. The ODC estimates are included in Performance Work Statement, Attachment 1- Ready Relevant Learning Continuum Support Spreadsheet.

5. Fixed Fee: Provide the percentage and dollar amount proposed for the fee.

6. Facilities Capital Cost of Money: If Contract Facilities Capital Cost of Money is proposed, a completed Contract Facilities Capital Cost of Money (FCCM) (DD Form 1861) is required.

7. Supporting Information: Supporting data including labor rates and hours, burden rates, material lists and costs, travel charges, and "other direct costs" used in developing the cost/price breakdown shall be furnished.

8. DCAA/DCMA Audit: If the offeror has been or is currently being audited by the Defense Contract Audit Agency (DCAA) or Defense Contract Management Agency (DCMA), the offeror shall provide the name and location of the assigned DCAA/DCMA office should be furnished with the proposal.

9. ESTIMATED LEVEL OF EFFORT: An offeror's cost proposal shall use the duties and personnel qualifications defined in the Performance Work Statement and Level of Effort clause within Section B to develop pricing for the labor categories included in Attachment 1- CNSL MHE Cost Spreadsheet.

All cost/price and cost/price supporting information shall be contained in the price proposal. No cost/price information shall be included in any other volume including cover letters. The offeror is responsible for submitting sufficient information to enable the Government to fully evaluate its' cost /price proposal.

The completion and submission of the above items will constitute a proposal and will indicate the offeror's unconditional assent to the terms and conditions of this RFP and any attachments hereto. Alternate proposals are not authorized. Objections to any terms and conditions of the RFP will constitute deficiency, which may make the offer unacceptable.

(h) ODCs are anticipated; the Government has included a "Not to Exceed" amount for ODCs/Travel. All offerors are to propose the "Not to Exceed" amount provided below for the identified CLIN.

The estimated ODC amounts are provided in the solicitation as Not to Exceed (NTE), cost-reimbursable CLIN. The Government's estimated ODC (plus applicable burdens) shall be used for the purpose of evaluating the cost/price proposal. Application of overhead and/or G&A rates, as appropriate, will be allowed only if the offeror maintains separate accounts for such costs; the offeror must apply burdens (as appropriate and allowable) to the common evaluation amounts. No profit or fee may be applied to the ODC costs.

Period		ODCs	Materials	Travel
Base Period	\$475,871.48	\$789,734.30	\$81,474.03	
Option Period 1	\$490,147.63	\$813,426.32	\$83,918.04	

Option Period 2	\$504,852.05	\$837,829.10	\$86,435.49
Option Period 3	\$519,997.61	\$862,963.96	\$89,028.84
Option Period 4	\$535,597.53	\$888,852.88	\$91,699.89
FAR clause 52.217-8	\$267,798.77	\$444,426.44	\$45,849.95

The cost submission is not page limited but is strictly limited to cost information.

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Small Business Subcontracting Plan

Each offeror that is not a small business shall provide a Small Business Subcontracting Plan that contains all

elements required by FAR clause 52.219-9 and as supplemented by DFARS clause 252.219-7003, by the closing

date and time of this solicitation. **The small business subcontracting plan is not an evaluation factor and will not be evaluated as part of the formal source selection process.** The Small Business Subcontracting Plan must be

determined to be acceptable by the contracting officer in order for the offeror to be eligible for contract award in

accordance with FAR 19.702(a)(1). If the apparently successful offeror fails to negotiate a subcontracting plan

acceptable to the contracting officer within the time limit prescribed by the contracting officer, the offeror will be

ineligible for award. If the contracting officer accepts the Small Business Subcontracting Plan, it will become part

of the contract. Offerors are permitted to submit a master subcontracting plan as long as it is created in accordance

with FAR 19.701 and FAR 19.704(b). Small Business Subcontracting Plans are not required from offerors that

qualify as small business concerns under NAICS code 811310 with a size standard of \$12.5M.

It is the goal of this solicitation that prime contractors subcontract with small businesses to the maximum extent practicable. For other-than-small prime contractors, the Small Business Subcontracting Plan goals shall be expressed in terms of whole dollars and percentages based on total planned subcontracting dollars. Of the total planned subcontracting dollars, the Small Business Subcontracting Plan shall include goals for small businesses, small disadvantaged businesses, woman-owned small businesses, HUBZone small businesses, veteran-owned small businesses, and service-disabled veteran-owned small businesses. The Government will consider prior achievement of small business subcontracting plan goals as well as the proposed dollar values and percentages related to this solicitation.

The completion and submission of the above items will constitute an offer (proposal) and will indicate the offeror's unconditional assent to the terms and conditions of this solicitation and any attachments and/or exhibits hereto.

Alternate proposals are not authorized. Objections to any of the terms and conditions of the solicitation will constitute a deficiency (see FAR 15.001), which will make the offer unacceptable.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-7	System for Award Management.	Nov 2024		
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System. Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or	Mar 2023		

252.215-7010 Pricing Data.
252.215-7016 Notification to Offerors-Postaward Debriefings.

May 2024
Oct 2025

FAR Clauses Incorporated by Full Text

52.233-2 Service of Protest.

(Sep 2006)

Service of Protest (Sept 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from

Christopher Whiteside

1968 Gilbert St. Suite 600

Norfolk, VA 23511-3392

(b) The copy of any protest shall be received in the office designated above within oneday of filing a protest with the GAO.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference.

(Feb 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far/part-52> and <https://www.acquisition.gov/dfars/part-252-solicitation-provisions-and-contract-clauses>

(End of provision)

52.252-5 Authorized Deviations in Provisions.

(Nov 2020)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any **DFARS** (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7025 Notice of Cybersecurity Maturity Model Certification Level Requirements.

(Nov 2025)

NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this provision, "controlled unclassified information (CUI)," "current," "Cybersecurity Maturity Model Certification (CMMC) status," "Cybersecurity Maturity Model Certification unique identifier (CMMC UID)," "Federal contract information (FCI)," and "plan of action and milestones" have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b)(1) *Cybersecurity Maturity Model Certification (CMMC) level.* The CMMC level required by this solicitation is: ____ [Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC)]. This CMMC level, or higher (see 32

CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation-

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) *Plan of action and milestones.* If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) *CMMC unique identifiers.* The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)

252.215-7008 Only One Offer.

(Dec 2022)

ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable ____ [U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts.* Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

Section M - Evaluation Factors for Award

Section M: Evaluation Criteria

The Government intends to award a Cost-Plus-Fixed-Fee (CPFF) contract to the responsible offeror whose proposal represents the best value after the evaluation in accordance with the factors in the solicitation.

The evaluation of proposals will consider the Non-Cost/Price Proposal to be significantly more important than the Cost Proposal. Within the Non-Cost/Price Proposal, Factor I is more important than Factor II and Factor II is more important than Factor III. The evaluation will consist of the evaluation of Factor I Technical Approach and its subfactors: Subfactor I Performance Approach and Subfactor II Staffing and Management Approach, Factor II Past Performance, Factor III Small Business Participation Plan, and Factor IV Cost/Price. Within Factor I, the two subfactors are weighted equally.

Vendors simply providing general statements or paraphrasing/parroting the PWS in whole or in any part may result in a rating of unacceptable. Vendors should be aware that a complete understanding as to technical, cost/price, and all terms and conditions of the proposed contract must exist between the vendor and the Government at the conclusion of discussions, if held. Material changes to proposals submitted in any final proposal revisions, if made, may not be subject to further exchange, and may render the proposal unacceptable to the Government. All vendors and team member/subcontractor information must be incorporated into one coherent proposal to be considered complete.

All proposals will be reviewed for timeliness. Timely proposals will also be reviewed for compliance to the solicitation. If the proposal is not compliant with the material terms of the solicitation, it may not be evaluated and the vendor will be notified that the proposal is non-responsive.

Volume I: Non-Cost/Price Proposal Evaluation Criteria

Factor I - Technical Approach

The purpose of the technical factor and subfactors is to assess the offeror's proposed approach to satisfy the Government's requirements. The evaluation of risk is related to the assessment of the offeror's proposed technical submittal. Risk, as it pertains to source selection, is the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an offeror's proposed approach to achieving the technical factor involves risk of disruption of schedule, increased cost or degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance. Risk will be considered in the evaluation of the technical factor and subfactors.

The technical/risk rating includes consideration of risk in conjunction with the significant strengths, strengths, deficiencies, uncertainties, weaknesses, and significant weaknesses in determining technical ratings. Combined technical/risk evaluations will utilize the combined technical/risk ratings listed in the Technical Ratings Table and the risk descriptions in the Risk Descriptions Tables below. The overall assigned technical factor (and subfactor) ratings will be from Table 1. Note that a separate and distinct rating for risk will not be assigned. The risk descriptions are provided in the Risk Descriptions Table (Table 2) below in order to define the risk terms that are utilized in the combined technical/risk rating table (Table 1) and to describe the level of risk assessed when establishing the combined technical risk/rating.

The Technical Approach factor consists of Subfactor I, Performance Approach, and Subfactor II, Staffing and Management Approach. Subfactors are weighted equally, and will result in one Technical Approach rating detailed in the rating table identified as "Combined Technical/Risk Table 1". Offerors simply providing general statements or paraphrasing/ parroting the PWS in whole or in any part may result in a rating of unacceptable.

Note: A rating of "Marginal" for any factor or subfactor means that the vendor's proposal is not awardable without a change or changes to the vendor's proposal. A proposal which includes a "Marginal" rating is not eligible for award if award is made on initial offers. Offerors that receive a "Marginal" rating are considered to be susceptible to correction if the Contracting Officer determines that discussions are appropriate and said discussions are conducted and as such, a vendor that receives a rating of "Marginal" in the technical factor (or subfactor) is not awardable and will not be further evaluated unless discussions are conducted.

Note: Offerors receiving a rating of "Unacceptable" for any factor or subfactor will not be considered for an award and will not be further evaluated.

Subfactor I - Performance Approach:

The offeror's proposed performance approach will be evaluated on feasibility, comprehensiveness, and the degree to which the offeror demonstrates its understanding of, and capability to successfully accomplish, the performance

approach requirements listed above in the technical subfactor I in Section L: Instructions, Conditions, and Notices to Offerors to the solicitation.

Subfactor II - Staffing and Management Approach:

The offeror's overall staffing and management approach will be evaluated on its feasibility, comprehensiveness, and the degree to which the offeror demonstrates its understanding of, and capability to successfully staff in order to, the staffing and management approach requirements listed above in the technical subfactor II in Section L: Instructions, Conditions, and Notices to Offerors to the solicitation.

Volume II: Factor II - Past Performance:

The past performance evaluation factor assesses the degree of confidence the Government has in an offeror's ability to meet the contract's requirements based on the quality of a demonstrated record of recent and relevant performance. There are three aspects to the past performance evaluation: recency, relevancy, and quality. These are combined to establish a single performance confidence assessment rating for each offeror.

Past Performance Recency: Recency is the first aspect of the past performance evaluation and is the time period during which past performance references are considered relevant. Recency is critical to establishing the relevancy of past performance information. For purposes of this solicitation, recent past performance is performance that has taken place within five (5) years as of the closing date of this solicitation, and each reference must also reflect one year of completed performance by the closing date of the solicitation. Performance outside of this stated period will

not be considered for evaluation purposes.

Past Performance Relevancy: Regarding relevancy, each past performance reference under each offeror's Past Performance submission will be evaluated to determine its scope and magnitude relative to the instant requirement.

The following definitions will apply to this evaluation:

- **Scope:** Experience in the areas defined in the PWS.
- **Magnitude:** The similarity of the dollar value of actually performed work that exists between the PWS and the vendor's referenced contracts during the stated five-year period established by the solicitation.

Each offeror's past performance references in terms of scope and magnitude will result in the assessed overall relevance of that offeror's past performance, and will result in a relevancy rating as outlined in Table 4 (Past Performance Relevancy Ratings Table), below. The relevancy rating assigned to each past performance reference will be considered in determining the weight to be given to that reference in the overall Past Performance Confidence Assessment. References determined to be "Not Relevant" will not be further considered. Similarly, the quality of performance under a past performance reference that has no relevance to the instant requirement will not be considered in the overall assessment of past performance confidence. In determining the rating for the past performance factor, past performance of greater relevancy will have more influence on the past performance confidence assessment than past performance of lesser relevance.

Past Performance Quality: The third aspect of the past performance evaluation is to establish the overall quality of the offeror's past performance. The Government will review all past performance information collected and determine the quality of the offeror's performance, including general trends and usefulness of the information, and will incorporate this into the performance confidence assessment.

Past Performance Confidence Assessment: The overall assigned rating for Past Performance will be the Past Performance Confidence Assessment ratings in Table 4. The assignment of this rating will be based on the quality of the recent and relevant past performance and will consider the currency and relevance of the information, source of the information, context of the data, and general trends in contractor's performance. The quality of performance under a past performance reference that that has no relevance to the instant requirement will not be considered in the

overall assessment of Past Performance Confidence. Evaluation will focus only on work already performed. Work yet-to-be performed and work prior the last five (5) years as of the closing date of this solicitation will not be considered. In addition, performance data will only be assessed for those references demonstrating at least one (1) year of completed performance prior to the closing date of this solicitation.

In the case of an offeror without a record of relevant past performance or for whom information on past performance is not available, the offeror may not be evaluated favorably or unfavorably on past performance. In this case, the offeror's past performance is unknown and assigned a performance confidence rating of "Neutral Confidence." Although an offeror that lacks recent, relevant past performance may not be rated favorably or unfavorably with regard to past performance, the Government may determine that a "Substantial Confidence" or "Satisfactory

Confidence" past performance rating provides better value to the Government than a "Neutral Confidence" past performance rating.

In order to determine the quality of performance, the Government may utilize existing data sources, including the Past Performance Information Retrieval System (PPIRS), the Contractor Performance Assessment Reporting System (CPARS), the Federal Awardee Performance and Integrity Information System (FAPIIS), the Electronic Subcontract Reporting System (eSRS), or other databases; communication with points of contact in the offeror's customer's organization, which could include private sector requirements and contracts personnel, Administrative Contracting Officers, Defense Contract Management Agency (DCMA) personnel, Procuring Contracting Officers, Contracting Officer's Representatives, and other Government activity requirements personnel. The Government may verify past performance information. The Government may contact some or all of the references provided, as appropriate, and may collect information through questionnaires, telephone interviews, and existing data sources. The Government reserves the right to obtain information for use in the evaluation of past performance from any and all sources, including sources outside of the Government. This information will be used for the evaluation of past performance.

This evaluation and rating is separate and distinct from the Contracting Officer's responsibility determination. The assessment of the offeror's past performance will be used as a means of evaluating the relative capability of the offeror and other competitors to successfully meet the requirements of the RFP. In determining the rating for the past performance evaluation, the Government will give greater consideration to the contracts which the Government assess as most relevant to the RFP.

NOTE: A rating of "Limited Confidence" for the past performance factor means that the offeror's proposal is not awardable without a change or changes to the offeror's proposal. A proposal that includes a "Limited Confidence" rating is considered to be susceptible to correction if the contracting officer determines that an exchange (pursuant to FAR 15.306) is appropriate and said exchange is conducted. A rating of "No Confidence" for the past performance factor means that the offeror's proposal is not awardable, is not susceptible to correction, and will not be further evaluated.

Factor III - Small Business Participation Plan:

The contracting officer will evaluate each offeror's Small Business Participation Approach as follows:

- The extent to which small business concerns are specifically identified
- The extent of commitment to use small business concerns (for example, enforceable commitments will be weighted more heavily than non-enforceable ones)
- The complexity and variety of the work small firms are to perform
- Past performance of the offeror in complying with requirements of the clauses at FAR 52.219-8, Utilization of Small Business Concerns, and FAR 52.219-9, Small Business Subcontracting Plan
- The extent of participation of small business concerns in terms of the value of the total acquisition

NOTE: An offer which receives a "Marginal" rating in any Non-Cost/Price Factor or Subfactor is not eligible for award if award is made on initial offers. Offerors that receive a "Marginal" rating are considered to be susceptible to correction if the Source Selection Authority determines that an exchange (pursuant to FAR 15.306) is appropriate and said exchange is conducted.

A rating of "Unacceptable" for any of the Non-Cost/Price Factor or Subfactor means that the offeror's proposal is not awardable and is not susceptible to correction without what would be tantamount to the submission of an entirely new proposal. Offerors simply providing general statements or paraphrasing/parroting the PWS in whole or in any part may result in a rating of "Unacceptable".

Volume IV Factor IV: Cost/Price Proposal

Evaluation: Cost proposals and price proposals will be evaluated on the basis of cost realism and price reasonableness, respectively, in accordance with FAR 15.404-1. Cost realism pertains to the offeror's ability to project costs which are realistic and reasonable and which indicate that the offeror understands the nature and scope of work to be performed. Labor will be evaluated on the basis of 100% straight time. Uncompensated overtime and uncompensated overtime rates will not be used in the evaluation. The Governments' probable cost resulting from the cost realism analysis of each offeror's proposal will be used to determine best value.

Although cost is considered in a manner that makes it less important than the Non-Cost/Price factor, it has the potential to become more significant during the evaluation process. The degree of importance of the cost will increase with the degree of equality of the proposals in relation to the other factors on which selection is to be based. The importance of cost will also increase when a proposal's cost is so significantly high as to diminish the value to the Government that might be gained under the other aspects of the offer. If, at any stage of the evaluation, all offerors are determined to have submitted equal, or virtually equal, or generally equivalent, Non-Cost/Price proposals, cost could become the factor in determining which offeror receives the award. The contracting officer may evaluate any and all information submitted by the vendor to support the reasonableness of costs proposed. The method of evaluation used by the contracting officer is solely within the discretion of the contracting officer.

Options will be evaluated pursuant to solicitation provision FAR 52.217-5, Evaluation of Options. The Government will evaluate offers for award purposes by adding the total cost for all options to the total cost for the basic requirement. The Government may determine that an offer is unacceptable if the option costs are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

Volume V Small Business Subcontracting Plan

The Small Business Subcontracting Plan requirement is mandatory for award to a large business. Each large business offeror's Small Business Subcontracting Plan will be reviewed in accordance with FAR clause 52.219-9-Small Business Subcontracting Plan. The plan will be reviewed for acceptability. The apparently successful offeror shall negotiate an acceptable subcontracting plan with the contracting officer prior to award. Failure to negotiate an acceptable subcontracting plan will make the offeror ineligible for award. The plan will be incorporated into any resultant contract. Small businesses are not required to submit a subcontracting plan, but are required to submit a small business participation plan.

Written Notice

A written notice of award or acceptance of an offer e-mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

RATING TABLES

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Table 1 - Technical Ratings Table

The below rating descriptions will be used during the evaluation for Factor I - Technical Approach and its subfactors:

TECHNICAL APPROACH - COMBINED TECHNICAL/RISK RATING TABLE

Rating	Description
Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.

Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.
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TABLE 2: TECHNICAL APPROACH - RISK DESCRIPTIONS TABLE

Rating	Description
Low	Proposal may contain weakness/weaknesses which have low potential to cause disruption of schedule, increased cost, or degradation of performance. Normal contractor emphasis and normal Government monitoring will likely be able to overcome any difficulties.
Moderate	Proposal contains a significant weakness or combination of weaknesses which may have a moderate potential to cause disruption of schedule, increased cost, or degradation of performance. Special contractor emphasis and close Government monitoring will likely be able to overcome any difficulties.
High	Proposal contains a significant weakness or combination of weaknesses which is likely to have high potential to cause significant disruption of schedule, increased cost, or degradation of performance. Special contractor emphasis and close Government monitoring will unlikely be able to overcome any difficulties.
Unacceptable	Proposal contains a deficiency or a combination of significant weaknesses that causes an unacceptable level of risk of unsuccessful performance.

TABLE 3: PAST PERFORMANCE RELEVANCY TABLE

Rating	Description
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort this solicitation requires.

TABLE 4: PAST PERFORMANCE CONFIDENCE ASSESSMENT TABLE

Rating	Description
Substantial Confidence	Based on the vendor's recent/relevant performance record, the Government has a high expectation that the vendor will successfully perform the required effort.
Satisfactory Confidence	Based on the vendor's recent/relevant performance record, the Government has a reasonable expectation that the vendor will successfully perform the required effort.

Neutral Confidence	No recent/relevant performance record is available or the vendor's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The vendor may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the vendor's recent/relevant performance record, the Government has a low expectation that the vendor will be successfully perform the required effort.
No Confidence	Based on the vendor's recent/relevant performance record, the Government has no expectation that the vendor will be able to successfully perform the required effort.

TABLE 5: SMALL BUSINESS PARTICIPATION RATINGS TABLE

Rating	Description
Outstanding	Proposal indicates an exceptional approach and understanding of the small business objectives
Good	Proposal indicates a thorough approach and understanding of the small business objectives
Acceptable	Proposal indicates an adequate approach and understanding of the small business objectives
Marginal	Proposal has not demonstrated an adequate approach and understanding of the small business objectives
Unacceptable	Proposal does not meet small business objectives

DEFINITIONS:

Strength - an aspect of a vendor's proposal with merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.

Significant Strength - an aspect of a vendor's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.

Weakness - a flaw in the proposal that increases the risk of unsuccessful contract performance.

Significant Weakness - a flaw that appreciably increases the risk of unsuccessful contract performance.

Deficiency - a material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.

Risk - (as it pertains to source selection) The potential for unsuccessful contract performance. The consideration of risk assesses the degree to which a vendor's proposal approach to achieving the technical factor or sub-factor may involve risk of disruption of schedule, degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

Uncertainty - aspect of a non-cost/price factor proposal for which the intent of the offer is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission, or mistake).

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.217-5	Evaluation of Options.	Jul 1990		